

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ALAN SCHOENBERG, and SUSAN SCHOENBERG,

Plaintiffs,

-against-

Index №.:**SUMMONS**

THE CITY OF NEW YORK individually and for the
 NEW YORK CITY POLICE DEPARTMENT,
 VINCENT DIFORTE, SERGEANT RIEGER, POLICE
 OFFICER HARRY ORTIZ, individually and in their official
 capacities as members of the NEW YORK CITY POLICE
 DEPARTMENT; and JOHN DOE OFFICERS AND
 DETECTIVES ONE THROUGH FIVE, individually and in
 their official capacity as police officers,

Defendants.

-----X

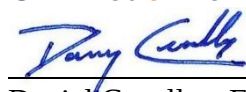
Plaintiffs designate New York County as the place of trial.

The basis of venue is the Plaintiffs' residence.

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with the Summons, to serve a Notice of Appearance on the Plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
 November 3, 2017

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ALAN SCHOENBERG, and SUSAN SCHOENBERG,

Plaintiffs,

-against-

THE CITY OF NEW YORK individually and for the
NEW YORK CITY POLICE DEPARTMENT,
VINCENT DIFORTE, SERGEANT RIEGER, POLICE
OFFICER HARRY ORTIZ, individually and in their official
capacities as members of the NEW YORK CITY POLICE
DEPARTMENT; and JOHN DOE OFFICERS AND
DETECTIVES ONE THROUGH FIVE, individually and in
their official capacity as police officers,Defendants.
-----X**Index №.:****VERIFIED COMPLAINT
AND DEMAND FOR
JURY TRIAL**

Plaintiffs ALAN SCHOENBERG and SUSAN SCHOENBERG (hereinafter,
“Plaintiffs”), by their attorneys Daniel Cevallos of Cevallos & Wong, LLP, as and for their
Complaint, do hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiffs’ rights under Article 1,
Section 6 of the Constitution of the State of New York, and the laws of the State of New York.

2. Plaintiff SUSAN SCHOENBERG’s and Plaintiff ALAN SCHOENBERG’s rights
were violated when officers of the New York City Police Department (“NYPD”)
unconstitutionally and without any legal basis arrested, caused to be prosecuted, and used
gratuitous, unlawful force against the Plaintiffs, despite knowing there was no justification for an
arrest, use of force or prosecution.

3. By reason of defendants’ actions, particularly their unreasonable use of force and
unlawful arrest, plaintiffs were deprived of their constitutional, statutory and common law rights.

4. Plaintiffs also seek an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

5. This action is brought pursuant to Article 1, Section 12 of the Constitution of the State of New York, and the laws of the State of New York, for, *inter alia*, malicious prosecution and other claims.

6. Subject Matter Jurisdiction and Personal Jurisdiction is proper in New York County Supreme Court pursuant to the Civil Practice Law and Rules.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York because the plaintiff's claims arose in the County of New York.

PARTIES

8. Plaintiff Alan Schoenberg is, and was at all times relevant to this action, a resident of the State of New York and the County of New York.

9. Plaintiff Susan Schoenberg is, and was at all times relevant to this action, a resident of the State of New York and the County of New York.

10. Defendant, THE CITY OF NEW YORK ("CITY"), is a municipal entity created and authorized under the laws of the State of New York.

11. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

12. Defendant CITY assumes the risks incidental to the maintenance of a police force, as well as the employment of police officers, as said risks attach to the public consumers of the services provided by NYPD.

13. New York City Police Department Officers (“P.O.”) VINCENT DIFORTE; HARRY ORTIZ; SERGEANT RIEGER (referred to collectively as the “individual defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD, upon information and belief, in the 5th Precinct, F Sector of the NYPD.

14. New York City Police Department Officers (“P.O.”) VINCENT DIFORTE; HARRY ORTIZ and SERGEANT RIEGER are citizens and residents of the State of New York. Officers HARRY ORTIZ and RIEGER operate out of the same command and precinct as Officer VINCENT DIFORTE, the 5th Precinct. Their Shield Numbers are not yet known.

15. The individual defendants are being sued herein in their individual and official capacities.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

17. The true names and shield numbers of defendants JOHN DOE 1 through JOHN DOE 5, and the first name of SERGEANT RIEGER are not currently known to the plaintiff.¹ However, all of said defendants are employees or agents of the NY City Police Dept. Accordingly, said defendants are entitled to representation in this action by the New

¹ By identifying said officers as “John Doe,” plaintiff is making no representations as to the gender of said officers.

York City Law Department (“Law Department”) upon their request, pursuant to N.Y. G.O.L. § 50-k.

18. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants becomes known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in this action.

19. Defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice and gross disregard for plaintiff’s rights.

20. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

EXHIBITS

21. The following exhibit is appended hereto and incorporated herein: Exhibit A: Notices of Claim of Alan Schoenberg and Susan Schoenberg; City Response; E-Receipt Claims.

NOTICE OF CLAIM

22. Within ninety days after claim arose, Plaintiffs filed Notices of Claim upon Defendants by delivering copies of the notices to the person designated by law as a person to whom such claims may be served. See, Notices of Claim for Alan Schoenberg and Susan Schoenberg, appended hereto with other documents which are incorporated herein collectively as Exhibit A.

23. The Notices of Claim were in writing, sworn to by Plaintiffs and contained the name and address of the Plaintiffs.

24. The Notices of Claim set out the nature of the claim, the time when and the place where and manner by which the claim arose, and the damages and injuries claimed to have been sustained by Plaintiffs.

25. The Defendants have neglected and failed to adjust the claims within the statutory time period.

26. Plaintiffs have satisfied their obligations under New York State General Obligations Law § 50-G, by filing a timely Notice of Claim.

27. At the request of the City of New York Office of the Comptroller, Alan Schoenberg submitted to a hearing pursuant to New York General Municipal Law Section 50-h on July 6, 2017.

28. At the request of the City of New York Office of the Comptroller, Susan Schoenberg submitted to a hearing pursuant to New York General Municipal Law Section 50-h on July 11, 2017.

29. Plaintiffs have satisfied all obligations pursuant to New York General Municipal Law Section 50-h and New York General Obligations Laws.

30. On November 17, 2016, the City Comptroller acknowledged the claims, and wrote to the Plaintiffs stating that the Plaintiffs had one year and ninety days from the occurrence in which to file a claim. *See*, Comptroller Letter, Exhibit A.

STATEMENT OF FACTS

31. The unlawful arrests described herein occurred at HPS Jewelers (the “Store” or “HPS”), at 72 Bowery in the County and State of New York (the “Premises”), on August 16, 2016, at about 4:00 p.m. and thereafter.

**HPS: LONGTIME, LAW-ABIDING MEMBER
OF THE JEWELRY COMMUNITY**

32. HPS Jewelers is duly licensed to do business in the State of New York.
33. HPS Jewelers has been doing business at that location for at least 35 years.
34. HPS sells antique, vintage, estate jewelry.
35. HPS sells “signed” jewelry from such well-known companies as Tiffany or Cartier, which are clearly labeled on display.
36. HPS also sells jewelry from estate sales, that are not from any particular or known company.
37. HPS lawfully resells vintage or antique jewelry for which the origin is not known.
38. Everything HPS sells is pre-owned, antique, and vintage.
39. HPS does not make or manufacture jewelry.
40. HPS’s business license is plainly on display at all times at 72 Bowery.
41. HPS’s business involves buying jewelry from the public.
42. HPS is a second-hand dealer, so both Mr. Schoenberg and Ms. Schoenberg work with the New York City Police Department on a monthly basis.
43. Every three months or so, the NYPD comes to look at HPS’s “buy book”, which has never not been to the satisfaction of NYPD.
44. HPS, Mr. Schoenberg, and Ms. Schoenberg, in thirty-five years, have *never* had any issue with the police.
45. No law enforcement agency has *ever* accused anyone at HPS of counterfeiting or copyright violation before the date of the arrest of the Schoenbergs.

THE WRONGFUL ARREST

46. On the date of the incident, Alan Schoenberg and Susan Schoenberg were employed by HPS Jewelers and shareholders of the corporation.

47. At the time of the incident, Mr. Schoenberg was assisting another customer at the counter of his store. Ms. Schoenberg was sitting at her desk at the store doing paperwork.

48. At that time, two unidentified, unknown gentlemen in civilian clothes approached the counter of HPS, pretending to be out of breath or injured in some way.

49. The men were later identified as defendants VINCENT DIFORTE, and, upon information and belief, HARRY ORTIZ.

50. Mr. Schoenberg finished assisting a previous customer and turned to the two unidentified men who were demanding his attention.

51. One of the men demanded to see a specific pair of earrings in the showcase (hereinafter, the subject "Earrings").

52. The subject Earrings were secured in a closed display case, and the unidentified men (later identified as police officers) demanded Mr. Schoenberg surrender his property to the men and give them access to it.

53. Mr. Schoenberg took the earrings out, whereupon one of the men demanded the price of the earrings.

54. Mr. Schoenberg responded with the price of the earrings, which was \$1,100.00.

55. On that date, the price of \$1,100 reflected the fair market value of the subject Earrings.

56. The men then asked if the earrings were Chanel earrings.

57. Mr. Schoenberg unequivocally answered: “No. Absolutely not. These are diamond crossover earrings.”

58. One of the men replied: “It looks like Chanel earrings.”

59. Mr. Schoenberg again responded: “They are not [Chanel earrings].”

60. One of the men responded: “Well, they look like Chanel earrings, and you are under arrest for trademark infringement and counterfeiting.”

61. At this point, the two men had not identified themselves, and did not show a badge or anything.

62. Susan Schoenberg, who had been working nearby at the HPS desk, noticed that something was wrong and came over to investigate.

63. Upon learning that these men told Mr. Schoenberg he was under arrest, she asked to see some identification.

64. In response, the two men ordered Ms. Schoenberg to go sit down, because she had “*nothing to do with this.*”

65. Ms. Schoenberg announced she was going to call the police, but the two men ordered her not to call the police.

66. Ms. Schoenberg was privileged to call the police at that time, despite the orders of the two men.

67. Because there was no show of badge or identification, Mr. Schoenberg and Ms. Schoenberg reasonably and actually did not believe these two men were police officers.

68. Mr. Schoenberg and Ms. Schoenberg reasonably and actually believed that they were being scammed, swindled and/or robbed.

69. HPS has been the target of numerous criminal attempts in the past, including scams, gifts, and swindles.

70. Reasonably and actually fearing that the Earrings were about to be stolen, Ms. Schoenberg walked up to the counter to return the subject earrings to the showcase.

71. The two men then forcibly grabbed Ms. Schoenberg by the wrist and announced she was under arrest too.

72. Up to this point, neither of the men showed a badge or identification.

73. Both Mr. Schoenberg and Ms. Schoenberg were forcibly arrested.

74. Mr. Schoenberg and Ms. Schoenberg suffered physical injuries as a result of their forcible arrest.

75. Mr. Schoenberg was arrested and charged with a single count of Trademark Counterfeiting in the Third Degree (Penal Law § 165.71), at docket number 2016-NY-049067.

76. Ms. Schoenberg was arrested and charged with a single count of New York Penal Law Section 195.05, Obstructing Governmental Administration In The Second Degree, docket number 2016-NY-049045.

77. Plaintiffs were processed and held in jail overnight and into the next day.

78. Plaintiffs were prosecuted by the State of New York.

79. At all times during the encounter with Defendants, Plaintiffs acted in a lawful manner.

80. Plaintiffs did not resist their illegal arrests in any manner.

81. All criminal complaints, allegations and charges were sworn to under oath by Defendants as true, even though they knew them to be false.

82. The Plaintiffs were each required to appear in court on numerous occasions related to the false criminal charges against them.

83. The Plaintiffs incurred legal and other expenses as a result of these wrongful arrest and prosecutions.

84. At all times herein, the Defendants had no cause, let alone probable cause or reasonable suspicion, to arrest, exercise excessive force, charge and detain Plaintiffs. Their actions were based on malice and bad faith and were supported by the false statements made by the Defendants under oath.

85. The conduct of the individual Defendants in restraining, arresting, striking, threatening and prosecuting the Plaintiffs proximately caused physical, emotional and financial injury to them, as well as serious physical and emotional pain and suffering, mental anguish, shock, fright, physical pain, humiliation, embarrassment and deprivation of their constitutional rights.

86. Plaintiffs suffered the trauma, debasement and humiliation as a result of being publicly arrested without any cause, and assaulted, unlawfully imprisoned and maliciously prosecuted.

THE SUBJECT EARRINGS

87. The subject Earrings in HPS's showcase are vintage, pre-owned jewelry.

88. The subject Earrings are not counterfeits.

89. The subject Earrings differ from Chanel earrings because the subject Earrings have an interlocking crossover style, whereas the Chanel earrings are two "C's" combined.

90. The subject Earrings, in fact, are objectively valued at more than the supposed Chanel earrings that they resembled.

91. The subject Earrings do not confuse consumers that they are Chanel products.
92. The subject Earrings bear no Chanel marks.
93. The subject earrings bear no Chanel signatures.
94. The subject Earrings are not counterfeits.
95. The subject Earrings violate no state or federal law.
96. Possession of the subject Earrings violates no state or federal law.
97. Sale of the subject Earrings violates no state or federal law.
98. No reasonable person would believe that the subject Earrings were illegal counterfeits.
99. The earrings have been returned to Plaintiffs and are not illegal contraband.
100. The Defendants knew and should have known that the subject Earrings, and the possession and sale thereof, were not unlawful.

**SUPREME COURT DISMISSES THE CASES
AGAINST THE PLAINTIFFS**

101. Supreme Court eventually dismissed all charges against Plaintiffs.

**Case Against Alan Schoenberg
Dismissed**

102. On December 20, 2016, Supreme Court dismissed the accusatory instrument against Alans Schoenberg as facially insufficient pursuant to Criminal Procedure Law (CPL) 170.30(1)(a), 100.15(3). See, December 20, 2016 Order and Opinion Dismissing Case, Docket No 2016NY049067 (N.Y. Sup., Watters, J.).²

² Decision and Order dismissing the case and certificates of disposition are sealed pursuant to 160.50 of the CPLR and as such, they are not appended hereto.

103. The misdemeanor information against Mr. Schoenberg failed to set forth non-hearsay allegations which established every element of the offense charged and the defendant's commission thereof.

104. The State was given the opportunity to file a facially sufficient superseding information within 30 days but it failed to do so.

105. The proceedings terminated in Alan Schoenberg's favor because a) the defendants knowingly prosecuted a case that they knew had no merit; and b) if litigated on the facts, it is incontrovertible that the proceedings would have terminated in his favor.

**Case Against Susan Schoenberg
Dismissed**

106. Ms. Schoenberg's right to a speedy trial guaranteed both by the Sixth Amendment to the United States Constitution (US Const. 6th, 14th Amends) and by statute (CPL 30.20; Civil Rights Law § 12) (*People v Romeo*, 12 NY3d 51, 55 [2009], *cert denied* 558 US 817 [2009]) was violated when the State failed to timely prosecute the case against her.

107. The People failed to be ready for trial within the time required following commencement of the criminal action, absent excludable time (CPL 30.30 [1][b]).

108. Accordingly, the case against Susan Schoenberg, 2016-NY-049045, was dismissed on March 23, 2017, by the Honorable Joanne Watters, certificate of disposition #109309.

FIRST CAUSE OF ACTION

State Common Law Malicious Prosecution All Plaintiffs vs. All Defendants

109. Plaintiffs Susan Schoenberg and Alan Schoenberg hereby incorporate all other paragraphs as if fully set forth herein at length.

110. The tort of malicious prosecution protects the personal interest in freedom from unjustifiable proceedings, and its essence is the perversion of proper legal procedures against plaintiffs. *Susser v. Fried*, 115 Misc. 2d 968, 455 NYS2d 930 [N.Y. City Civ. Ct. 1982].

A. THE COMMENCEMENT AND CONTINUATION OF CRIMINAL PROCEEDINGS

111. The Defendants commenced criminal and related proceedings against the plaintiffs.

112. The Defendants continued criminal and related proceedings against the plaintiffs.

B. TERMINATION IN FAVOR OF THE PLAINTIFFS

113. The final termination of the criminal proceedings in favor of the Plaintiffs, such that the proceeding could not be brought again, qualified as a favorable termination for purposes of a malicious prosecution action (*see*, Restatement [Second] of Torts §§ 659–660; Prosser and Keeton, Torts § 119, at 874 [5th ed.]).

114. The courts have “long embraced this rule as the law of New York.” *Smith-Hunter v. Harvey*, 95 N.Y.2d 191 (2000) (*citing Robbins v. Robbins*, 133 N.Y. 597, 599, 30 N.E. 977).

115. The criminal proceedings terminated favorably to the Plaintiffs when there was no further proceeding possible upon the complaint or indictment, and no further prosecution of the alleged offenses. *Id.*

116. It makes no difference how the Plaintiffs' criminal prosecutions were terminated, provided they were terminated, and at an end. *Id.* (citing 133 N.Y., at 599–600, 30 N.E. 977.

117. The prosecution of both Plaintiffs ended in failure; both are accordingly favorable terminations. *Id.*, (citing *Burt v. Smith*, 181 N.Y. 1, 5, 73 N.E. 495).

118. The criminal and other proceedings did terminate in favor of the plaintiffs.

119. The outcome of the criminal proceedings against the plaintiffs are consistent with the innocence of the Plaintiffs.

Susan Schoenberg

120. Ms. Schoenberg's dismissal pursuant to CPL 30.30 falls squarely within *Robbins*. *Id.*

121. Because the accusatory instrument against Ms. Schoenberg was dismissed on speedy trial grounds there can be no further prosecution of the offense. *Vitellaro v. Eagle Ins. Co.*, 150 A.D.2d 770, 541 N.Y.S.2d 614 [2d Dept.]; *Lenahan v. Familo*, 79 A.D.2d 73, 436 N.Y.S.2d 473 [4th Dept.], *appeal dismissed* 54 N.Y.2d 680.

122. Termination in Ms. Schoenberg's criminal case was consistent with the innocence of the accused because the State failed to put on their case or marshal witnesses. *Id.*

123. The termination of Ms. Schoenberg's criminal case was not due in any part to any misconduct on the part of the accused or in her behalf for the purpose of preventing proper trial. Restatement [Second] of Torts § 660[b].

124. Ms. Schoenberg's conduct in no way prevented a consideration of the merits of the case.

125. Ms. Schoenberg's own conduct did not result in the impossibility or impracticality of bringing her to trial.

C. THE ABSENCE OF PROBABLE CAUSE

126. There was no probable cause supporting the case against Plaintiffs.

127. Defendants knew or had constructive knowledge that there was an entire lack of probable cause in the criminal proceedings commenced against Plaintiffs.

128. The facts and circumstances known to the Defendants when they commenced and continued these proceedings against Plaintiffs would lead any reasonably prudent person in a similar situation to believe Plaintiffs not guilty.

129. That there was no probable cause is evidenced by the fact that each case was dismissed.

D. ACTUAL MALICE

130. The Defendants commenced and continued the proceedings against Plaintiffs with actual malice.

131. The Defendants commenced and continued the criminal proceedings against Plaintiffs with “conscious falsity”—that is, they were conscious of the falsity of the proceedings against Defendant.

132. Defendants commenced the criminal proceedings for a wrong and improper motive, for something other than the desire to see the ends of justice served.

133. There is circumstantial evidence of malice because Defendants must have known that there was no probable cause to prosecute Plaintiffs.

E. THE CONSEQUENCES

134. Defendants’ conduct actually caused Plaintiffs to be wrongfully accused, tried, convicted, and imprisoned.

135. Defendants' conduct foreseeably caused Plaintiffs to be wrongfully accused, tried convicted and imprisoned.

136. Plaintiffs suffered damages and injuries as a result of Defendants' conduct as described herein.

137. Plaintiffs suffered special injuries as a result of Defendants' conduct.

138. As a direct and foreseeable result of Defendants' conduct, Plaintiffs suffered concrete harm, considerably more cumbersome than the physical, psychological or financial demands of defending a prosecution. *Engel v. CBS, Inc.*, 93 NY2d 195, 689 NYS2d 411 [1999]; *Kaye v. Trump*, 58 AD3d 579, 873 NYS2d 5 [1st Dep't 2009].

139. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of Plaintiff.

140. Defendant THE CITY OF NEW YORK, as an employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

141. Defendants are not entitled to prosecutorial immunity because the prosecutor's actions went well beyond professional evaluation of evidence assembled by police. *Dann v. Auburn Police Dept.*, 138 AD3d 1468, 31 NYS3d 335 [4th Dep't 2016].

142. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiffs sustained the damages alleged herein.

SECOND CAUSE OF ACTION

State Law Respondeat Superior Claim All Plaintiffs vs. All Defendants

143. Plaintiffs hereby incorporate all other paragraphs as if fully set forth herein at length and further alleges as follows.

144. On information and belief, at all times relevant to this complaint the individual Defendants acted as agents of, and in scope of their employment with, the City of New York.

145. The conduct by which Defendants committed the tort of malicious prosecution was undertaken while Defendants were on duty, carrying out their routine investigative functions as NYPD detectives or officers, and engaging in such conduct as would have been reasonably expected by their employer.

146. During the course of Schoenberg's prosecution, the named police officers and detectives regularly issued and abused criminal process to assist and perpetuate the criminal proceedings including.

147. This was all done with an intent to do harm, *to wit*, to obtain the incarceration of Mr. Schoenberg and Ms. Schoenberg for a crime they did not commit, without excuse or justification.

148. Defendants knew and should have known that plaintiffs were innocent of any counterfeiting, copyright, and/or interference with process charges.

149. An additional collateral and entirely illegal motivation for this abuse of process was that they suspected that Plaintiffs were guilty of other crimes which they could not prove & therefore used this conjured up crime as a convenient pretext to incarcerate Plaintiffs.

150. All of these actions deprived Plaintiffs of both their liberty without due process of law and their right to equal protection of the laws and due process of law in violation of his rights secured by the New York Constitution.

151. THE CITY OF NEW YORK is liable for its agents' state law tort of malicious prosecution under the doctrine of *respondeat superior*.

152. The Defendant employer or principal is liable for a malicious prosecution instituted or continued by its employee or agent because the actions of the latter were within the scope of his or her authority or the course of employment, and were ratified by the employer.

153. The agents acted with express or implied authority.

154. The acts complained of herein were committed within the actual or apparent scope of the employee's or agent's employment, done in the course of the employee's or agent's employment, and in furtherance of the employee's or agent's employer's interests.

155. The malice of the individual Defendant employees and agents accompanying performance of their duties herein, is imputed to the Defendant employer or principal.

156. Authority is implied in part here, because the Defendant employee's object at all times was to protect the Defendant agency's reputation and advance the objective.

THIRD CAUSE OF ACTION

Assault and Battery All Plaintiffs vs. All Defendants

157. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

158. By the actions described above, defendants did inflict assault and battery upon plaintiffs.

159. The acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

160. As a result of the foregoing, plaintiffs were deprived of liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment All Plaintiffs vs. All Defendants

161. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

162. By the actions described above, defendants caused to be falsely arrested or falsely arrested plaintiffs, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

163. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

164. As a result of the foregoing, plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

FIFTH CAUSE OF ACTION

Abuse of Process All Plaintiffs vs. All Defendants

165. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

166. By the conduct and actions described above, defendants employed regularly issued process against plaintiffs compelling the performance or forbearance of prescribed acts.

167. The purpose of activating the process was intent to harm the plaintiffs without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to the plaintiffs, which was outside the legitimate ends of the process.

168. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

169. As a result of the foregoing, the plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Intentional and Negligent Infliction of Emotional Distress All Plaintiffs vs. All Defendants

170. The Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

171. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to the plaintiffs.

172. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

173. As a result of the foregoing, the plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and were otherwise damaged and injured.

SEVENTH CAUSE OF ACTION

Violation of Right to Equal Protection of Law All Plaintiffs vs. All Defendants

174. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

175. By the actions described above, defendants violated the plaintiffs' right to equal protection of law.

176. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

EIGHTH CAUSE OF ACTION

Negligence All Plaintiffs vs. All Defendants

177. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

178. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiffs.

179. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

180. As a result of the foregoing, the plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

**AS AND FOR A NINTH CAUSE OF
ACTION**

**Negligent Hiring, Training and Supervision
All Plaintiffs vs. All Defendants**

181. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

182. Defendant THE CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

183. As a result of the foregoing, the plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

DAMAGES AND PRAYER FOR RELIEF

184. Defendants caused numerous damages and injuries to Plaintiffs.

185. Plaintiffs sustained economic injuries.

186. Plaintiffs sustained emotional injury.

187. Plaintiffs sustained severe mental anguish.

188. Plaintiffs sustained physical injuries and received negligent medical care while incarcerated.

189. Plaintiffs was deprived of their liberty while incarcerated.

190. Plaintiffs did not have access to the type of medical treatment that they would have had he had been a free civilian.

191. Plaintiffs suffered loss of freedom and liberty.

192. Plaintiffs suffered loss of companionship and services of their family.

193. Plaintiffs are entitled to damages for past emotional anguish and suffering.

194. Plaintiffs are entitled to damages for future emotional anguish and suffering.

195. Plaintiffs suffered lost earnings and lost opportunities to develop earnings potential

196. Plaintiffs suffered bodily injury, pain, and suffering.

197. Plaintiffs are entitled to compensation for physical injuries sustained and harm as a result of the wrongful incarceration.

WHEREFORE, Plaintiffs Alan Schoenberg and Susan Schoenberg pray as follows:

- A. For judgment against each of the Defendants, jointly and severally, on each cause of action, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction;
- B. For judgment against each of the Defendants, jointly and severally, on each cause of action, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction;
- C. That the Court award compensatory damages to Plaintiffs and against Defendants, jointly and severally on each and every claim herein, in an amount to be determined at trial;
- D. That the Court award punitive damages to Plaintiffs and against all individual Defendants, in an amount to be determined at trial, that will deter such conduct by Defendants in the future;

- E. For a trial by jury;
- F. For pre-judgment and post-judgment interest and recovery of their costs, including reasonable attorney's fees; and
- G. For any and all other relief to which they may be entitled.

DEMAND FOR JURY TRIAL

Plaintiffs respectfully demand a trial by jury for all issues so triable.

Dated: New York, New York
November 3, 2017



A handwritten signature in blue ink, appearing to read 'Danny Cevallos', written over a horizontal line.

Daniel Cevallos, Esq.
NY ID No.: 3944493
61 Broadway, #2220
New York, NY 10006
Danny@CevallosWong.com
m Ph: 917.699.5008
www.CevallosWong.com

VerificationSTATE OF NEW YORK)COUNTY OF NEW YORK)

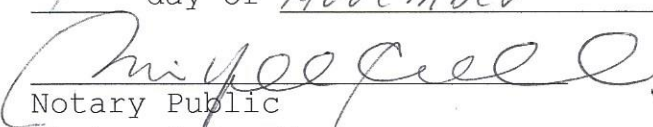
ss:

SUSAN SCHOENBERG, being duly sworn, deposes and says:

That I am the Plaintiff in the within action and that I have read the foregoing Complaint and I know and understand the contents thereof; that same is true to my own knowledge except as to those matters therein alleged to be upon information and belief and as to those matters I believe them to be true.


SUSAN SCHOENBERG

Sworn to before me this

1 day of November, 2017
Notary Public

State of New York



Verification

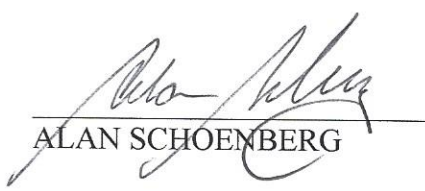
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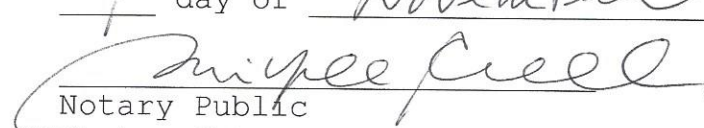
ALAN SCHOENBERG, being duly sworn, deposes and says:

That I am the Plaintiff in the within action and that I have read the foregoing Complaint and I know and understand the contents thereof; that same is true to my own knowledge except as to those matters therein alleged to be upon information and belief and as to those matters I believe them to be true.


ALAN SCHOENBERG

Sworn to before me this

1st day of November, 2017


Notary Public

State of New York



